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PEREZ FLORES. v. GENERAL MOTORS, LLC.

CASE NO.: 25NWCV04386

HEARING: Thursday, August 13, 2026, at 9:30 AM

Plaintiff ERIK PEREZ FLORES' Demurrer to Defendant GENERAL MOTORS, LLC's Answer is SUSTAINED in part without leave to amend, SUSTAINED in part with 30 days leave to amend, and OVERRULED in part.

Moving party to give notice.

Background

On December 10, 2025, Plaintiff ERIK PEREZ FLORES ("Plaintiff") filed this "lemon law" action against Defendants GENERAL MOTORS, LLC ("Defendant") and DOES 1-20, inclusive.

Plaintiff's Complaint asserts the following causes of action:

(1) Breach
of Express Warranty Under the Song-Beverly Consumer Warranty Act;

(2) Breach
of Implied Warranty Under the Song-Beverly Consumer Warranty Act; and

(3) Violation
of the Song-Beverly Act Section 1793.2(d)

On February 23, 2026, Plaintiff filed the instant Demurrer arguing that (1) Defendant's Contributory Negligence Affirmative Defense is barred; (2) Defendant's Second, Third, Sixth through Seventeenth, and Nineteenth through Twenty-Fourth Affirmative Defenses fail to state facts sufficient to constitute a defense; (3) Defendant's Fifth Affirmative Defense Violates CCP § 458; and (4) Defendant's Eighteenth Affirmative Defense is not a legally cognizable affirmative defense.

Legal Standard

"A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense. (b) The answer is uncertain. As used in this subdivision, 'uncertain' includes ambiguous and unintelligible. (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral." (Code Civ. Proc. § 430.20.) Every affirmative defense "shall be separately stated, and the several defenses shall refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished." (Code Civ. Proc. § 431.30, subd. (g).) "If the complaint is verified...the denial of the allegations shall be made positively or according to the information and belief of the defendant." (Code Civ. Proc. § 431.30, subd. (d).)

"Demurring to an answer is a commonly recognized practice.

Unlike the usual general demurrer to a complaint the inquiry is not into the statement of a cause of action. Instead, it is whether the answer raises a defense to the plaintiff's stated cause of action. A general demurrer raises the objection that the answer does not state facts sufficient to constitute a defense" (Timberidge Enterprises, Inc. v. City of Santa Rosa (1978) 86 Cal.App.3d 873, 879-880 [internal citations and quotations omitted].) Generally, defendants must allege facts in support of affirmative defenses. (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384 [affirmative defenses "proffered in the form of terse legal conclusions, rather than as facts 'averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint'" are not well pled and cannot

survive a demurrer].)

Contributory Negligence

The California Supreme Court abrogated Contributory Negligence in 1975 and replaced it with the doctrine of comparative negligence. (Li v. Yellow Cab Co. (1975) 13 Cal.3d 804, 825-826.)

To the extent Defendant's Fourth Affirmative Defense also raises Unclean Hands and Assumption of Risk, those Affirmative Defenses should be plead separately.

Plaintiff's Demurrer against Defendant's Contributory Negligence Affirmative Defense is SUSTAINED without leave to amend.

Defendant's Second, Third, Sixth through Seventeenth, and Nineteenth through Twenty-Fourth Affirmative Defenses

Plaintiff contends these Affirmative Defenses merely state legal conclusions and not specific facts.

While there are no evidentiary facts alleged in the Answer, the cardinal rule of pleading is that only the ultimate facts need be alleged. (Semole v. Sansoucie (1972) 28 Cal.App.3d 714, 719.) Furthermore, the " 'distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree. [Citations.] For example, the courts have permitted allegations which obviously included conclusions of law and have termed them "ultimate facts" or "conclusions of fact." ' ' ' (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6.)

Further, the sufficiency of an answer depends on the complaint to which it purports to answer. (South Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 733.) Therefore, the Answer does not stand alone and is not unsupported by factual allegations as Plaintiff contends; rather it is read with reference to the facts alleged in Plaintiff's Complaint.

Here, while Defendant's Affirmative Defenses as sparse on facts, for instance Defendant's Second Affirmative Defenses states: "GM is informed and believes, and therefore alleges, that Plaintiff is barred from obtaining the relief sought in the Unverified Complaint because Plaintiff has failed and refused to allow GM a reasonable opportunity to cure any alleged breach by GM," the Court finds they sufficiently plead "ultimate facts."

To the extent Plaintiff needs specific facts, Plaintiff can propound Form Interrogatory No. 15.1 to find out which facts, documents and witnesses support each affirmative defense.

Fifth Affirmative Defense – Statute of Limitations

"[Under Code of Civil Procedure section 458] it is necessary for defendant. . .to specify the applicable section, and, if such section is divided into subdivisions, to specify the particular subdivision or subdivisions thereof" and "if he fails to do so the plea is insufficient." (Brown v. World Church (1969) 272 Cal.App.2d 684, 691.)

Defendant's Fifth Affirmative Defense states: "GM is informed and believes, and therefore alleges, that the Unverified Complaint, and each cause of action alleged in it, is barred by application of the statutes of limitation in Code of Civil Procedure sections 337(1), 337(2), 337(3), 338(1), 338(2), 338(3), 338(4), 338(7), 339(1), 339(3), 340(1), 340(2), 340(3), 342, 343, 344, 348, Commercial Code section 2725, and any other statute of limitation applicable to this action."

Defendant recites a string of code sections without identifying which one is relevant to Defendants Statute of Limitations Affirmative Defense.

Plaintiff's Demurrer to Defendant's Statute of Limitations Defense is SUSTAINED with 30 days leave to amend.

Eighteenth Affirmative Defense – Qualified Third-Party Dispute Resolution Process

Plaintiff maintains Defendant's Eighteenth Affirmative Defense is not a legally cognizable Affirmative Defense.

The Court finds Plaintiff's arguments unavailing.

Defendant's Eighteenth Affirmative Defense concerns a buyer's use of a third-party dispute resolution program under Civil Code §1793.22(c). The answer simply alleges that Plaintiff did not use that third-party dispute resolution program. Civil Code section 1794(e)(2) provides that a manufacturer is not liable for civil penalties if it maintains a qualified third-party dispute resolution program. (Civ. Code, § 1794(e)(2).) The answer alleges that Defendant maintains such a dispute resolution program and is therefore not liable for civil penalties. The Court finds this Affirmative Defense is authorized under Civ. Code § 1794(e)(2).

Plaintiff's Demurrer to Defendant's Eighteenth Affirmative Defense is OVERRULED.

Conclusion

Plaintiff's Demurrer to Defendant's Contributory Negligence Affirmative Defense is SUSTAINED without leave to amend.

Plaintiff's Demurrer to Defendant's Second, Third, Sixth through Seventeenth, and Nineteenth through Twenty-Fourth Affirmative Defenses is OVERRULED.

Plaintiff's Demurrer to Defendant's Fifth Affirmative Defense is SUSTAINED with 30 days leave to amend.

Plaintiff's Demurrer to Defendant's Eighteenth Affirmative Defense is OVERRULED.